Docusign Envelope ID: 1A73540D-000E-80CC-8046-A11B95713355

No. CV23038

BILLIE JOE JARMON, JR., CYNTHIA LYNET JARMON, and DESTINY JARMON	**§**	**IN THE DISTRICT COURT**
Plaintiffs,	**§**	
	§	
v.	**§**	**77th JUDICIAL DISTRICT**
	§	
DAN ALVIN WILLIS; DINA EVELYN WILLIS; DOYLE HENRY WILLIS, JR.; and CLYDELL VERNON,	**§**	
Defendants.	**§**	**FREESTONE COUNTY, TEXAS**

COMPROMISE SETTLEMENT AND AGREEMENT FOR PARTITION

This *Compromise Settlement and Agreement for Partition* is entered into by and between Plaintiffs Billie Joe Jarmon, Jr., Cynthia Lynet Jarmon, and Destiny Jarmon (collectively, the "**Jarmons**"), who are represented by attorney Rachel Hytken of Quilling, Selander, Lownds, Winslett and Moser, P.C.; Defendant Doyle Willis, Jr., *pro se*; Defendant Dina Willis, *pro se*; and Harrison Willis, Co-Executor of the Estate of Dan Alvin Willis, who is represented by attorney William Penny, Jr. of Holland, Johns, & Penny, LLP (collectively, the "**Willis Defendants**").

I.

The parties affirm that there are disputes existing between and among them having to do with and in conjunction with the ownership of the surface estate of an approximately 108-acre tract of land located in Freestone County, Texas more particularly described as follows:

110 acres in the J.Y. Aguilera Grant:

> BEGINNING at a point in the Oakwood and Turlington Road, said point being the Northeast cor. of 191.67 acres of land conveyed by the Estate of P.D. Ball to Dan Tippen and wife, a 36" P.O. Mkd X brs S. 36 East 16 vrs; THENCE South 54 ½ deg. West with the N.W. line of said Dan Tippen 191.67 acre tract, 1180 vrs to the West or N.W. corner of said 191.67 acre tract, at a point in the occupied S.W. boundary line of the J.Y. Aguilera Grant, a stake for corner from which a 16" P.O. mkd X brs S. 34 deg. E. 10 vrs; THENCE North

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> 35 ½ deg West with the S.W. line of said Aguilera Grant and along an old wire fence 500 vrs. To a stake in the same for corner from which a 12" S.J. mkd X brs N 1 ½ deg. E. 24 vrs; THENCE N. 54 ½ deg. East 1295 vrs to a stake for cor. In the center of the Oakwood and Turlington Raod from which a 10" B.J. mkd X brs N. 78 deg West 8 vrs and a 14" S.J. mkd X brs S 28 deg W 13.3 vrs; THENCE S 22 deg 30' East with the center of a general course of said road 513 vrs. to the place of beginning, save and except all minerals heretofore conveyed or reserved.

Less and except 2 acres, being:

> the surface estate to all that certain lot, tract or parcel of land, situated in Freestone County, Texas, and being 2 acres out of the Willis McDonald 110 acres on J.Y. Aguilera Grant, Abstract No. 2, Freestone County, Texas ad described in a deed from Trustees of P.D.C. Ball Estate to Willis McDonald of record in Vol. 198, page 201, Deed Records of Freestone County, Texas;
>
> BEGINNING at a stake in the center of the Turlington and Oakwood Road, S 22 deg. 30 min. E 166 vrs to a stake in said road at the intersection of a road leading to Holly Springs lodge;
> THENCE S 70 deg. 30 min. W 168 vrs along the N line of said road to the iron stake for corner;
> THENCE N 22 deg. 30 min. W 166 vrs to iron stake for corner;
> THENCE N 70 deg. 30 min. E 68 vrs to a stake in the center of the Turlington & Oak Road to place of Beginning, containing 2 acres

(the "108-Acre Property")

II.

Whereas, in this above styled and numbered cause pending in the District Court of Freestone County, Texas, Plaintiffs assert through their First Amended Petition for Partition that of the 108-acre Property they have fee simple title to 85.669 acres of land, more or less (the "86-Acre Parcel") as described in a deed dated August 31, 2005 from Elie Vernon, Jr. and Clydell Vernon to Billie Joe Jarmon, Jr. and Cynthia Lynet Jarmon, recorded in the Official Public Records of Freestone County under Instrument No. 05006122.

The Willis Defendants' claim to the 108-Acre Property arises from a deed dated July 9, 1981 from Minnie Ola McDonald to Doyle Willis, which conveyed "an undivided 13.5/106

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interest in and to the surface" of the 108-Acre Property. In 2006, Doyle Willis died. Via a Special Warranty Distribution Deed from Dan Alvin Willis, as Independent Executor of the Estate of Doyle Henry Willis, Deceased, his interest in the 108-Acre Property passed to his three children, Defendants Dan Alvin Willis, Dina Evelyn Willis, and Doyle Henry Willis, Jr. with each taking a proportionate 1/3 share of the 13.5/106 interest. In December 2025, Dan Willis died, and Harrison Willis was appointed coexecutor of the Estate of Dan Willis.

On or about August 31, 2005, Elie Vernon, Jr. and Clydell Vernon executed the deed purporting to convey to Billie Joe Jarmon, Jr. and Cynthia Lynet Jarmon a/k/a Cynthia L. Jarmon fee simple title.

In 2018, Plaintiffs Billie Joe Jarmon, Jr. and Cynthia Lynet Jarmon conveyed 2 acres of the surface estate of the 86-Acre Parcel along with an access easement to their daughter Destiny Jarmon as memorialized in the General Warranty Gift Deed, recorded in the Official Public Records of Freestone County under Instrument No. 01802042.

III.

Whereas, the parties, to include the Jarmons and the Willis Defendants who have been duly served with citation in this cause and acknowledge that the disputes that exist as between them arguably affect title to the surface estate of the 86-Acre Parcel on which the Jarmons have their home located. To avoid the expense, uncertainty and inconvenience of further litigating the above styled and numbered cause pending in the District Court of Freestone County, Texas the parties desire to resolve, settle and compromise their various claims and causes of action which have been asserted or which could be asserted through amendment of their pleadings on file in said cause and further desire to resolve any and all conflicting claims of ownership interests in and to the surface estate of the 86-Acre Parcel.

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IV.

Therefore, to accomplish the resolution, settlement and compromise of the parties' claims and causes of action asserted or which could be asserted through amendment of their pleadings in the above entitled and numbered cause pending in the District Court of Freestone County, Texas, the parties agree as follows:

1. PROPERTY PARTITIONED AND CONVEYED TO BILLIE JOE JARMON, JR. AND CYNTHIA LYNET JARMON:

The parties request that the District Court of Freestone County, Texas partition to Plaintiffs Billie Joe Jarmon, Jr. and Cynthia Lynet Jarmon, husband and wife, to have, hold, possess, own and enjoy to themselves, their heirs, personal representatives and assigns, for their part, the following to be further memorialized in a deed from the Willis Defendants to Billie Joe Jarmon, Jr. and Cynthia Lynet Jarmon:

TRACT ONE:

> ALL that certain tract or parcel of land, being a part of the JOSE Y. AGUILERA SURVEY. ABSTRACT NO. 2, Freestone County, Texas, also being a part of that certain called 96.5 acre tract (110 acres save and except 13.5/106 acres conveyed to Clydell Vernon et vir by Minnie Ola McDonald, April 25, 2000, recorded in Volume 1121, page 894 of the Deed Records of Freestone County, Texas, and being more completely described as follows, to-wit:
>
> BEGINNING at a 1/2" Iron Rod set for corner at the Northwest corner of the above mentioned 110 acre tract and the Southwest corner of a called 52.2 acre tract described in volume 246, page 349 of the Deed Records of Freestone County, Texas, in the Northeast line of a called 14.5 acre tract described in Volume 281, page 295 of the Deed Records of Freestone County, Texas, the Southwest line of the Jose Y. Aguilera Survey, A - 2, and the Northeast line of the G. J. Weaver survey, A - 881, Freestone County, Texas.
>
> THENCE N 54° 30' E with the Northwest line of said 110 acre tract and the Southeast line of said 52.2 acre tract a distance of 2725.69 feet to a 1/2" Iron Rod set for corner at the Northwest corner of a 6.50 acre tract.

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THENCE S 35° 30' E with the Southwest line of said 6.50 acre tract a distance of 212.41 feet to a 1/2" Iron Rod set for corner at the Southwest corner of said 6.50 acre tract.

THENCE in an Easterly direction with the South line of said 6.50 acre tract as follows: N 54° 30' E - 281.58 feet to a 1/2" Iron Rod set for corner and S 82° 31' 11" E - 400.69 feet to a 1" x 1/4" Flat Iron found for corner at the Northwest corner of a called 2 acre tract described in Volume 346, page 216 of the Deed Records of Freestone County, Texas.

THENCE S 24° 15' 50" E with the Southwest line of said 2 acre tract a distance of 446.54 feet to a 1/2" Iron Rod set for corner at the Southwest corner of said 2 acre tract, in the Northwest line of a 0.76 of an acre easement and the Northwest margin of Private Road No. 369.

THENCE N 73° 35' 43" E with the Southeast line of said 2 acre tract, the Northwest line of said 0.76 of an acre easement and the Northwest margin of Private Road No. 369 a distance of 197.01 feet to a 1/2" Iron Rod set for corner at the southeast corner of said 2 acre tract and the Northeast corner of said 0.76 of an acre easement, in the Northeast line of said 110 acre tract, the Southwest line of a called 51 1/2 acre tract described in Volume 494, page 405 of the Deed Records of Freestone County, Texas, and in the. Northeast edge of oiled County Road No. 360.

THENCE S 24° 50' 29" E with the Northeast line of said 110 acre tract and the Southwest line of said 51 1/2 acre tract, at 30.33 feet passing the Southeast corner of said 0.76 of an acre easement, continuing a total distance of 386.55 feet to a 1/2" Iron Rod set for corner at the Southeast corner of said 110 acre tract and the Northeast corner of a called 191.67 acre tract described in Volume 190, page 622 of the Deed Records. of Freestone County, Texas, in the center line of oiled County Road No. 360.

THENCE S 54° 33' 05" W with the southeast line of said 110 acre tract and the Northwest line of said 191.67 acre tract a distance of 1631.56 feet to a 1/2" Iron Rod set for corner at the Southeast corner of a 13.50 acre tract, in the West edge of Private Road No. 369.

THENCE N 12° 43' 46" E with the East line of said 13.50 acre tract and the West edge of Private Road No. 369, at 978.57 feet passing the Southwest corner of said 0.76 of an acre casement, continuing a total distance of 1013.66 feet to a 1/2" Iron Rod set for corner at the Northeast corner of said 13.50 acre tract, in the South edge of a lease road.

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THENCE in a westerly direction with the North line of said 13.50 acre tract and the South edge of said lease road as follows: S 71" 48' 58" W -791.96 feet to a 1/2" Iron Rod set for corner and S 56° 09' 54" W - 137.61 feet to a 1/2" Iron Rod set for corner at the Northwest corner of said 13.50 acre tract.

THENCE S 19" 44' 12" E with the West line of said 13.50 acre tract a distance of 950.35 feet to a 1/2" Iron Rod set for corner at the Southwest corner of said 13.50 acre tract, in the Southeast line of said 110 acre tract and the Northwest line of said 191.67 acre tract.

THENCE S 54° 33' 05" W with the Southeast line of said 110 acre tract and the Northwest line of said 191.67 acre tract a distance of 1252.19 feet to a 1/2" Iron Rod set for corner at the Southwest corner of said 110 acre tract and the Northwest corner of said 191.67 acre tract, in the Northeast line of a called 201.645 acre tract described in Volume 859, page 313 of the Deed Records of Freestone County, Texas, the Southwest line of the Jose Y. Aguilera survey, A-2, and the Northeast line of the G. J. Weaver survey, A-881.

THENCE N 37° 32' 12" W with the Southwest line of said 110 acre tract, the Northeast line of said 201.645 acre tract, the Northeast line of a called 14.5 acre tract described in Volume 278, page 477 of the Deed Records o£ Freestone County, Texas, the Northeast line of a called 14.5 acre tract described in Volume 278, page 603 of the Deed Records of Freestone County, Texas, the Northeast line of a called 14.5 acre tract described in volume 281, page 309 of the Deed Records of Freestone County, Texas, the Northeast line of said 14.5 acre tract described in Volume 281, page 295 of the Deed Records of Freestone County, Texas, the Southwest line of the Jose Y. Aguilera Survey, A - 2, and the Northeast line of the G. J. Weaver Survey, A - 881, a distance of 1365.81 feet to the place of beginning, containing 85.669 acres of land, of which 0,279 of an acre is in oiled County Road No. 360, and 0.76 of an acre is in a road casement.

SAVE AND EXCEPT a 2.00 acre parcel conveyed by Grantee to Destiny Jarmon, a single person, via General Warranty Gift Deed dated June 19, 2018, recorded in the Official Real Property Records of Freestone County, Texas on June 20, 2018 under Clerk's Number 0180242 and legally described as follows:

All that certain lot, tract, or parcel of land situated in the Jose Y. Aguilera Survey Abstract 2, Freestone County, Texas, and being part of a called 85.669 acre tract described by deed recorded in Volume 1332, Page 816 of the Deed Records of Freestone County, Texas. Said tract being more particularly described by metes and bounds as follows:

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BEGINNING on a found 1/2" iron rod for the southeast corner of this tract located S 54° 33 '05" W 765.73 feet from the original southeast corner of the above mentioned 85.669 acre tract;

THENCE S 54° 33' 05" W 295.16 feet to a set 1/2" iron rod for the southwest corner of this tract;

THENCE N 35° 26' 55" W 295.16 feet to a set 1/2" iron rod for the northwest corner of this tract;

THENCE N 54° 33' 05" E 295.16 feet to a set 1/2" iron rod for the northeast corner of this tract;

THENCE S 35° 26' 55" E 295.16 feet to the place of beginning and containing 2.00 acres of land.

2. PROPERTY PARTITIONED AND CONVEYED TO DESTINY JARMON:

The parties request that the District Court of Freestone County, Texas partition to Plaintiff Destiny Jarmon, to have, hold, possess, own and enjoy to herself, her heirs, personal representatives and assigns, for her part, the following to be further memorialized in a deed from the Willis Defendants to Destiny Jarmon:

TRACT TWO:

A 2.00 acre parcel conveyed by Grantee to Destiny Jarmon, a single person, via General Warranty Gift Deed dated June 19, 2018, recorded in the Official Real Property Records of Freestone County, Texas on June 20, 2018 under Clerk's Number 0180242 and legally described as follows:

All that certain lot, tract, or parcel of land situated in the Jose Y. Aguilera Survey Abstract 2, Freestone County, Texas, and being part of a called 85.669 acre tract described by deed recorded in Volume 1332, Page 816 of the Deed Records of Freestone County, Texas. Said tract being more particularly described by metes and bounds as follows:

BEGINNING on a found 1/2" iron rod for the southeast corner of this tract located S 54° 33 '05" W 765.73 feet from the original southeast corner of the above mentioned 85.669 acre tract;

THENCE S 54° 33' 05" W 295.16 feet to a set 1/2" iron rod for the southwest corner of this tract;

THENCE N 35° 26' 55" W 295.16 feet to a set 1/2" iron rod for the northwest corner of this tract;

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THENCE N 54° 33' 05" E 295.16 feet to a set 1/2" iron rod for the northeast corner of this tract;

THENCE S 35° 26' 55" E 295.16 feet to the place of beginning and containing 2.00 acres of land.

3. PROPERTY PARTITIONED AND CONVEYED TO THE WILLIS DEFENDANTS:

The parties request that the District Court of Freestone County, Texas partition to the Willis Defendants, to have, hold, possess, own and enjoy to themselves, their heirs, personal representatives and assigns, for their part, the following to be further memorialized in a deed from the Jarmons and Clydel Vernon to the Willis Defendants:

TRACT THREE:
[field notes to be inserted here]

together with a non-exclusive access easement described as follows:

EASEMENT FOR INGRESS AND EGRESS
TO TRACT THREE:
[field notes to be inserted here]

4. PROPERTY PARTITIONED AND CONVEYED TO CLYDEL VERNON:

The parties request that the District Court of Freestone County, Texas partition to Clydel Vernon, to have, hold, possess, own and enjoy to herself, her heirs, personal representatives and assigns, for her part, the following:

TRACT FOUR:
[field notes to be inserted here]

V.

As further consideration for the settlement made between the parties hereto it is agreed by and between the parties that upon the District Court of Marion County's approval of the settlement set forth in this *Compromise Settlement and Agreement for Partition* and entering Judgment in accordance with the parties' agreement for partition and conveyance of the property subject hereto, the Parties will be deemed to have waived any claim he or she may have for reimbursement for his or her payment of ad valorem property taxes owed on the property which is the subject of this settlement from any other party.

VI.

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VII.

The parties hereto acknowledge that this agreement is a compromise and settlement of disputed claims and that the provision of consideration by any of the parties to this agreement to any other of the parties, as provided for in this *Compromise Settlement and Agreement for Partition* is not an admission of liability on the part of any party to this agreement and all parties expressly deny any and all liability to the others. The parties to this *Compromise Settlement and Agreement for Partition* acknowledge that they are signing this agreement voluntarily and that no promises, representations, collusions or inducements have been made that caused them to sign this agreement other than those which are expressly made herein, and that they are executing this agreement relying upon their own advices and as their own free act.

VIII.

The parties agree that this *Compromise Settlement and Agreement for Partition* shall be construed and enforced in accordance with the laws of the State of Texas and shall not be altered or varied except by means of a writing signed by the parties or their attorneys or duly authorized agents or representatives. This *Compromise Settlement and Agreement for Partition* may be executed in multiple originals with copies containing the original or copies of their written signatures as being deemed an original.

IX.

The parties further agree that this *Compromise Settlement and Agreement for Partition* contains the entire agreement between the parties and supersedes any and all prior agreements, arrangements or other understandings between the parties relating to the subject matter hereof, save and except for those documents to be executed by the parties so as to carry out the executory provisions of this *Compromise Settlement and Agreement for Partition.*

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X.

The parties agree that should any part of this *Compromise Settlement and Agreement for Partition* be declared invalid for any reason, such invalidity shall not affect the validity of any remaining portion of the agreement and such remaining portions shall continue in full force and effect as if the agreement had been originally executed without including the invalid part.

XI.

The parties further agree they shall present the settlement as reflected in this *Compromise Settlement and Agreement for Partition* to the District Court of Freestone County, Texas for approval and for entry of Judgment of Partition of the property and for other relief as agreed to and set forth by the parties herein.

Executed effective this _____ day of _____, 2026.

_____
Billie Joe Jarmon, Jr.

_____
Cynthia Lynet Jarmon

_____
Destiny Jarmon

_____
Doyle Willis, Jr.

_____
Dina Willis

Signed by:
Harrison Willis 3/10/2026
9E81879283DB4D8...
Harrison Willis, Co-Executor of the
Estate of Dan Alvin Willis

_____
Callen Willis, Co-Executor of the
Estate of Dan Alvin Willis

_____
Attorney for the Jarmons

_____
Attorney for Harrison Willis,
Co-Executor of the
Estate of Dan Alvin Willis